



House of Representatives

General Assembly

File No. 406

February Session, 2026

Substitute House Bill No. 5148

House of Representatives, April 7, 2026

The Committee on Education reported through REP. LEEPER of the 132nd Dist., Chairperson of the Committee on the part of the House, that the substitute bill ought to pass.

AN ACT CONCERNING THE EXISTENCE OF AND METHODS OF ADDRESSING RACIAL IMBALANCE IN PUBLIC SCHOOLS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

- 1 Section 1. (*Effective July 1, 2026*) (a) The Department of Education shall
- 2 study the effectiveness of the method of addressing racial imbalance
- 3 specified in sections 10-226a to 10-226e, inclusive, of the general statutes
- 4 and the regulations adopted pursuant to said sections. Such study shall
- 5 include, but not be limited to, (1) an examination of the effectiveness of
- 6 various strategies implemented to correct racial imbalances in the long
- 7 term and short term, (2) a cost benefit analysis of implementing such
- 8 strategies, (3) the impact on pupils of racial minorities, as described in
- 9 section 10-226a of the general statutes, as a result of such strategies, such
- 10 as access to neighborhood schools and educational outcomes, and (4)
- 11 suggestions for alternative methods for correcting racial imbalances.
- 12 (b) Not later than January 1, 2028, the Department of Education shall
- 13 submit a report, in accordance with the provisions of section 11-4a of the
- 14 general statutes, to the joint standing committee of the General

15 Assembly having cognizance of matters relating to education on the
16 findings of the study conducted pursuant to subsection (a) of this
17 section.

18 Sec. 2. Section 10-226b of the general statutes, as amended by section
19 28 of public act 26-1, is repealed and the following is substituted in lieu
20 thereof (*Effective July 1, 2026*):

21 (a) Whenever the State Board of Education finds that racial imbalance
22 exists in a public school, it shall notify in writing the board of education
23 having jurisdiction over said school that such finding has been made,
24 except the State Board of Education shall not notify a board of education
25 of such finding until July 1, [2030] 2028.

26 (b) As used in sections 10-226a to 10-226e, inclusive, "racial
27 imbalance" means a condition wherein the proportion of pupils of racial
28 minorities in all of the grades of a public school of the secondary level
29 or below taken together substantially exceeds or falls substantially short
30 of the proportion of such public school pupils in all of the same grades
31 of the school district in which said school is situated taken together.

32 Sec. 3. Section 10-226c of the general statutes, as amended by section
33 29 of public act 26-1, is repealed and the following is substituted in lieu
34 thereof (*Effective July 1, 2026*):

35 (a) Any board of education receiving notification of the existence of
36 racial imbalance as specified in section 10-226b, as amended by public
37 act 26-1 and this act, shall forthwith prepare a plan to correct such
38 imbalance and file a copy of said plan with the State Board of Education,
39 except such board of education shall not be required to prepare and file
40 said plan until July 1, [2030] 2028. Said plan may be limited to
41 addressing the imbalance existing at any school and need not result in a
42 district-wide plan or district-wide pupil reassignment. A school district
43 may request an extension of time in cases in which the number of
44 students causing said imbalance is fewer than five students at a school.

45 (b) Any plan submitted by the board of education of any town under

46 sections 10-226a to 10-226e, inclusive, shall include any proposed
47 changes in existing school attendance districts, the location of proposed
48 school building sites as related to the problem, any proposed additions
49 to existing school buildings and all other means proposed for the
50 correction of said racial imbalance. The plan shall include projections of
51 the expected racial composition of all public schools in the district. The
52 plan may include provision for cooperation with other school districts
53 to assist in the correction of racial imbalance.

54 Sec. 4. Section 10-226d of the general statutes, as amended by section
55 30 of public act 26-1, is repealed and the following is substituted in lieu
56 thereof (*Effective July 1, 2026*):

57 Upon receipt of any plan required under the provisions of subsection
58 (b) of section 10-226c, as amended by public act 26-1 and this act, the
59 State Board of Education shall review said plan. If it determines that the
60 plan is satisfactory, it shall approve the plan and shall provide to the
61 board of education such assistance and services as may be available. The
62 board of education shall submit annual reports on the implementation
63 of the approved plan, as the State Board of Education may require. The
64 State Board of Education shall not take action on any plan received on
65 or after July 1, 2024, until July 1, [2030] 2028.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>July 1, 2026</i>	New section
Sec. 2	<i>July 1, 2026</i>	10-226b
Sec. 3	<i>July 1, 2026</i>	10-226c
Sec. 4	<i>July 1, 2026</i>	10-226d

Section 1	<i>July 1, 2026</i>	New section
Sec. 2	<i>July 1, 2026</i>	10-226b
Sec. 3	<i>July 1, 2026</i>	10-226c
Sec. 4	<i>July 1, 2026</i>	10-226d

ED Joint Favorable Subst.

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact:

Agency Affected	Fund-Effect	FY 27 \$	FY 28 \$
Education, Dept.	GF - Cost	Up to 250,000	None

Note: GF=General Fund

Municipal Impact:

Municipalities	Effect	FY 27 \$	FY 28 \$	FY 29 \$
Various Local and Regional School Districts	See Below	None	None	See Below

Explanation

The bill, which addresses racial imbalance in public schools, results in a cost to the State Department of Education of up to \$250,000 in FY 27 only and shifts potential compliance costs for various school districts from FY 31 to FY 29

Section 1 requires to the State Department of Education (SDE) to study the effectiveness of various methods and regulations currently required to address racial imbalance and report the results by January 1, 2028. The section results in a cost of up to \$250,000 to SDE in FY 27. It is anticipated SDE will hire a contractor to complete the study.

Sections 2 – 4 advance potential costs incurred by certain local and regional school districts. The sections change the timing by which the State Board of Education (SBE) or a local or regional school district must take action when SBE has found that racial imbalance exists in such

district. The sections move the date of enforcement from FY 31 to FY 29. This correspondingly advances any costs a district would incur in order to comply with such laws from FY 31 to FY 29.

The Out Years

The annualized ongoing fiscal impact identified above would continue into the future subject to inflation.

OLR Bill Analysis**sHB 5148*****AN ACT CONCERNING THE EXISTENCE OF AND METHODS OF ADDRESSING RACIAL IMBALANCE IN PUBLIC SCHOOLS.*****SUMMARY**

This bill requires the State Department of Education to (1) study the methods of addressing racial imbalance in the state's racial imbalance law and related regulations and (2) report the study findings to the Education Committee by January 1, 2028.

Under the bill, the study must include:

1. an examination of the long- and short-term effectiveness of different strategies implemented to correct racial imbalances;
2. a cost-benefit analysis of their implementation;
3. the strategies' impact on racial minorities, such as access to neighborhood schools and educational outcomes; and
4. suggestions for ways to correct racial imbalances.

The racial imbalance law requires the State Board of Education (SBE), when it finds a racial imbalance at a public school, to give the school's board of education written notification. In response, the notified school board must prepare a plan to correct the imbalance and submit it to SBE for approval.

PA 26-1, §§ 28-30, paused enforcement of this law until July 1, 2030, by prohibiting SBE from notifying a school board about a racial imbalance at one of its schools until July 1, 2030. The bill shortens this prohibition until July 1, 2028. It similarly shortens provisions (1) suspending the requirement for a notified board to prepare and file a

correction plan and (2) prohibiting SBE from taking any action on any plan received on or after July 1, 2024.

By law a “racial imbalance” is a proportion of minority students enrolled in all grades in a public school that substantially exceeds, or substantially falls short of, the proportion of minority students in the same grades in all the district’s public schools (see BACKGROUND).

EFFECTIVE DATE: July 1, 2026

BACKGROUND

Racial Imbalance Defined

Under state regulations a school is “racially imbalanced” if the percentage of minority students enrolled falls outside the range of 25 percentage points more or less than the district-wide percentage (Conn. Agencies Regs. § 10-226e-3(b)). For example, in a school district that has an overall minority enrollment of 50%, an individual school that has less than 25% or more than 75% minority enrollment in comparable grades across the district would be considered racially imbalanced.

COMMITTEE ACTION

Education Committee

Joint Favorable Substitute

Yea 32 Nay 13 (03/16/2026)